

**SUBSTITUTE FOR
HOUSE BILL NO. 5933**

A bill to amend 1972 PA 230, entitled
"Stille-DeRossett-Hale single state construction code act,"
by amending section 11 (MCL 125.1511).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 11. (1) ~~The~~**An** enforcing agency shall examine an
2 application for a building permit **or an additional permit**. If the
3 application conforms to this act, the code, and the requirements of
4 other applicable laws and ordinances, the enforcing agency shall
5 approve the application and issue a building permit **or an**
6 **additional permit** to the applicant, **as applicable**. ~~An~~**The enforcing**
7 **agency shall grant the** application, ~~shall be granted,~~ in whole or
8 in part, or ~~denied within~~**deny the application not later than** 10
9 business days ~~, except that in case of~~**after receipt of the**



1 **application. However, if the application is for** an unusually
 2 **complicated building or structure, ~~action~~ the enforcing agency**
 3 **shall be ~~taken within~~ grant the application, in whole or in part,**
 4 **or deny the application not later than 15 business days after**
 5 **receipt of the application.** Failure by an enforcing agency **other**
 6 **than the department** to grant, in whole or in part, or deny an
 7 application within these periods of time ~~shall be deemed is~~
 8 **considered to be** a denial of the application for purposes of
 9 authorizing the institution of an appeal to the appropriate board
 10 of appeals. ~~The~~

11 (2) For an application for a building permit or an additional
 12 permit that an applicant submits to the department, if the
 13 department requires a change to the application, the department
 14 must notify the applicant within the periods of time described in
 15 subsection (1), as applicable. Except as otherwise provided under
 16 section 11a, the department shall not require any new or additional
 17 changes to the application for a building permit or an additional
 18 permit after those periods of time.

19 (3) An enforcing agency shall approve changes in plans and
 20 specifications previously approved by ~~it, the enforcing agency,~~ if
 21 the changes require approval, and if the **changed** plans and
 22 specifications ~~when so changed~~ remain in conformity with law.

23 (4) Except as otherwise provided in this act or the code, the
 24 construction or alteration of a building or structure ~~shall must~~
 25 ~~not be commenced~~ **commence** until a building permit has been issued.
 26 The construction of a building or structure ~~shall must~~ comply with
 27 the approved application for a building permit, and the enforcing
 28 agency shall ~~insure~~ **ensure** such compliance in the manner provided
 29 ~~in under~~ section 12 and in any other way ~~it the enforcing agency~~



1 deems appropriate.

2 **(5) ~~(2)~~**—The enforcing agency may suspend, revoke, or cancel a
3 building permit in case of failure or neglect to comply with the
4 provisions of this act or the code, or upon a finding by ~~it~~**the**
5 **enforcing agency** that a false statement or representation has been
6 made in the application for the building permit.

7 **(6) As used in this section and sections 11a to 11c,**
8 **"additional permit" means a permit for a particular kind of work as**
9 **described in section 10(6). Additional permit includes, but is not**
10 **limited to, all of the following permits:**

- 11 **(a) An electrical permit.**
- 12 **(b) A plumbing permit.**
- 13 **(c) A mechanical or HVAC permit.**
- 14 **(d) A demolition permit.**
- 15 **(e) A foundation-only permit.**
- 16 **(f) A temporary structure permit.**
- 17 **(g) A shell building permit.**

18 Enacting section 1. This amendatory act does not take effect
19 unless all of the following bills of the 103rd Legislature are
20 enacted into law:

- 21 (a) House Bill No. 5932.
- 22 (b) House Bill No. 5934.
- 23 (c) House Bill No. 5935.

